

Tamil Nadu Prohibition of Child Marriage Rules, 2009

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State of Tamilnadu- Act

Tamil Nadu Prohibition of Child Marriage Rules, 2009

TAMILNADU

India

Tamil Nadu Prohibition of Child Marriage Rules, 2009

Rule TAMIL-NADU-PROHIBITION-OF-CHILD-MARRIAGE-RULES-2009 of 2009

Published on 30 December 2009

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Tamil Nadu Prohibition of Child Marriage Rules, 2009

Published vide Notification No. G.O. (Ms.) No. 169, Social Welfare and Nutritious Meal Programme (SW5), dated 30.12.2009

Last Updated 5th February, 2020

No. SRO A-44(a)/2009. - In exercise of the powers conferred by sub-section (1) of Section 19 of the Prohibition of Child Marriage Act, 2006 (Central Act 6 of 2007), the Governor of Tamil Nadu hereby makes the following Rules, namely:-

1.

Short title.

- These rules may be called the Tamil Nadu Prohibition of Child Marriage Rules, 2009.

2.

Definition.

(1)

In these rules, unless the context otherwise requires, -

(a)

"Act" means the Prohibition of Child Marriage Act, 2006 (Central Act 6 of 2007);

(b)

"State Government" means the Government of Tamil Nadu:

(2)

Words and Expressions used and not defined in these rules but defined in the Act shall have the meaning respectively assigned to them in the Act.

3.

Duties and Functions of Child Marriage Prohibition Officer.

- In addition to the duties and functions assigned to the Child Marriage Prohibition Officer under sub-section (3) of Section 16 of the Act, it shall be the duty of every Child Marriage Prohibition Officer -

(a)

to act immediately upon any information of solemnisation of any child marriage that may be received through any mode of communication including written or oral i.e. through a letter, telephone, telegram, e-mail etc. or by any other means and forthwith initiate all necessary action;

(b)

to furnish quarterly return and statistics to the Commissioner of Social Welfare in Form I;

(c)

to file petition for annulling a child marriage in District Court in case the petitioner is a minor;

(d)

to file petition before the District Court to pay maintenance to the female contracting party of the Marriage until her remarriage;

(e)

to file petition before the District Court for the custody and maintenance of children of the child marriage.

4.

Filing of the case.

- Any person in the best interest of the child, may also file a petition through Child Marriage Prohibition Officer.

5.

Panchayat Level Core Committee.

- A Committee with the following persons to assist the Child Marriage Prohibition Officer:-

Panchayat

President

: Chairperson

Extension Officer (Social Welfare)

: Convener

Village Administrative Officer

: Member

Secretary, Panchayat Level Federation of Self

Help Groups

: Member

Head Master / Senior Teacher (where there is no
Head Master)

: Member

One Women Ward Member (If more than one Women
Ward Member, the Senior most by age)

: Member

Form - I

(See rule -3)

Child Marriage Incident Report

1. Details of the complainant / Party to the child marriage:

(1)

Name of the complainant /Party to the child marriage:

(2)

Age:

(3)

Present Address:

(4)

Phone Number,If any:

2. Details of respondents:

Sl.No.

Name

Address

Tel. No.

3. Details of Marriage:

Sl. No.

Date, Place and Time of Child Marriage

Performer

Priest

Relative

4. List of documents attached:

Name of document

D

Birth Certificate

Doctor's Certificate for age verification

List of money,Ornaments,valuables,gifts given at the time of marriage

5. Order that need to be obtained under the Prohibition of Child Marriage Act, 2006 (Central Act 6 of 2007):

Sl.No.

Orders

Yes/No

1.

Prohibitory injunction under Section 13.

2.

Annulment order under Section 3.

3.

Residence order under Section 4(4).

4.

Maintenance order under Section 4(1).

5.

Custody order under Section 5.

6.

Restriction order under Section 3(4).

7.

Any other Order.

6.

Assistance needed:

Sl.No.

Assistance available

Yes/No

1.

Counsellor

2.

Police Assistance

3.

Assistance for initiating Criminal Proceedings

4.

Shelter home

5.

Medical Facilities

6.

Legal Aid

Place.....

Date.....

.....

(Counter signature of Prt)

Name.....

Address.....

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